

**Court No. - 21**

**Case :-** WRIT - C No. - 28041 of 2024

**Petitioner :-** Ram Prasad Gupta

**Respondent :-** State Of Up And 2 Others

**Counsel for Petitioner :-** Anil Kumar Chaudhary

**Counsel for Respondent :-** C.S.C.,Udit Chandra

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Manish Kumar Nigam,J.**

1. Shri Udit Chandra, learned counsel for the respondent, Electricity Department, prays for and is granted ten days' time to obtain instructions.

2. List as fresh on 12 September 2024.

**Order Date :-** 29.8.2024

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(Manish Kumar Nigam,J.)      (Manoj Kumar Gupta,J.)

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**Counsel for Petitioner :-** Anil Kumar Chaudhary

**Counsel for Respondent :-** C.S.C., Udit Chandra

**Hon'ble Manoj Kumar Gupta, J.**

**Hon'ble Manish Kumar Nigam, J.**

1. The order of final assessment has been passed without recording any independent finding relating to theft or unauthorized use of electricity. This is contrary to the requirements of Paragraph 6.8 of the U.P. Electricity Supply Code, 2005.
2. We are informed that the same Executive Engineer has passed similar kind of order in another case (Writ - C No. 29817 of 2024). The said writ petition is coming up for hearing on 26.9.2024.
3. Let the facts of the instant case be also examined by the Chief Engineer, as had been directed in Writ - C No. 29817 of 2024. He may apprise the court of the action which he proposes to take to remedy the situation.
4. List as fresh on 26.9.2024 along with record of Writ - C No. 29817 of 2024.
5. In the meantime, recovery in pursuance of the order of final assessment dated 19.7.2024, shall remain in abeyance.

**(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)**

**Order Date :-** 12.9.2024

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**Respondent :-** State Of Up And 2 Others

**Counsel for Petitioner :-** Anil Kumar Chaudhary

**Counsel for Respondent :-** C.S.C., Udit Chandra

**Hon'ble Manoj Kumar Gupta, J.**

**Hon'ble Kshitij Shailendra, J.**

1. The instant petition has been filed praying for quashing of the order dated 19.07.2024 passed by Executive Engineer, Vidhut Vitran Khand, Ghazipur. It is an order of final assessment passed against the petitioner.

2. On 12.09.2024 the following order was passed:-

*"1. The order of final assessment has been passed without recording any independent finding relating to theft or unauthorized use of electricity. This is contrary to the requirements of Paragraph 6.8 of the U.P. Electricity Supply Code, 2005.*

*2. We are informed that the same Executive Engineer has passed similar kind of order in another case (Writ - C No. 29817 of 2024). The said writ petition is coming up for hearing on 26.9.2024.*

*3. Let the facts of the instant case be also examined by the Chief Engineer, as had been directed in Writ - C No. 29817 of 2024. He may apprise the court of the action which he proposes to take to remedy the situation.*

*4. List as fresh on 26.9.2024 along with record of Writ - C No. 29817 of 2024.*

*5. In the meantime, recovery in pursuance of the order of final assessment dated 19.7.2024, shall remain in abeyance. "*

3. On matter being taken up today, the concerned Chief Engineer has filed his personal affidavit and it is admitted therein that the impugned order is not sustainable and, therefore, it was withdrawn. Notice has been issued to the petitioner fixing date for filing of objections so that fresh order could be passed.

4. The affidavit also discloses that the Superintending Engineer of the Division was not monitoring the assessment cases as per SOP dated 16.04.2024 and a show cause notice dated 24.08.2024 has been issued to him. The Executive Engineer has also been issued a show cause notice for not following the procedure prescribed under the law. It has been assured that all attempts would be made to monitor the assessment cases, so that the procedural errors are identified at initial stage and remedial steps are taken.

5. Having regard to the aforesaid stand, we **dispose of** the instant petition with liberty to the respondents to pass fresh order strictly in accordance with law.

**Order Date :- 26.9.2024**

Pkb/

**(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)**